

OMB Control No: 0970-0114

Expiration date: 03/31/2027

THE PAPERWORK REDUCTION ACT OF 1995 (Pub. L. 104–13)

The purpose of this information collection is the application for CCDF funds and provides ACF and the public with a description of, and assurance about, the States' and Territories' child care programs. Public reporting burden for this collection of information is estimated to average 150 hours per response, including the time for reviewing instructions, gathering, and maintaining the data needed, and completing the form. This is a mandatory collection of information (Pub. L. 113–186), and 42 U.S.C. 9858.

An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information subject to the requirements of the Paperwork Reduction Act of 1995, unless it displays a currently valid OMB control number. The OMB # is 0970-0114 and the expiration date is 03/31/2027. If you have any comments on this collection of information, please contact ACF's Office of Child Care.



**Appendix 1: Lead Agency Implementation Plan  
for**

**State/Territory New Mexico**

**FFY 2025 – 2027**

**Version: Initial Plan**

**Plan Status: Approved as of 2024-11-09 00:55:03 GMT**

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
  - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

## EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a)

Overall Target Completion Date: 03/31/2026

| Action Step Number | Action Step Description                                                                                                                                                                                                        | Target Completion Date |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| 1                  | Seek a statutory amendment to state procurement law to allow ECECD to make prospective payments.                                                                                                                               | 01/31/2025             |
| 2                  | Conduct assessment of Lead Agency's current payment & recoupment system, analyze other states' prospective payment policies and procedures, and draft new payment and recoupment processes.                                    | 05/31/2025             |
| 3                  | Statutory amendment effective.                                                                                                                                                                                                 | 06/30/2025             |
| 4                  | Identify and draft regulation changes to allow prospective payments.                                                                                                                                                           | 06/30/2025             |
| 5                  | Collaborate with the New Mexico Department of Finance and Administration in developing an auditing and recoupment procedure that allows the Lead Agency an exemption to state procurement code to pay providers prospectively. | 08/31/2025             |
| 6                  | Regulation changes effective.                                                                                                                                                                                                  | 08/31/2025             |
| 7                  | Make appropriate modifications to existing provider placement agreements and child care placement agreements.                                                                                                                  | 08/31/2025             |
| 8                  | Gather requirements to inform IT changes.                                                                                                                                                                                      | 09/30/2025             |
| 9                  | Develop process changes to IT system and test functionality and user acceptance testing.                                                                                                                                       | 03/31/2026             |

|    |                                                                                                                                          |            |
|----|------------------------------------------------------------------------------------------------------------------------------------------|------------|
| 10 | Update the child care assistance program policy manual and other associated program documents to reflect regulation & procedure changes. | 02/28/2026 |
| 11 | Develop new training materials.                                                                                                          | 02/26/2026 |
| 12 | Provide training and disseminate information to all impacted stakeholders on regulation & procedure changes.                             | 03/31/2026 |